



CHAPTER lxxii

An Act to confirm a Provisional Order made by the Minister of Transport and Civil Aviation under the General Pier and Harbour Act 1861 relating to Wisbech Port and Harbour. [2nd August 1956.]

WHEREAS a Provisional Order made by the Minister of Transport and Civil Aviation under the General Pier and Harbour Act 1861 is not of any validity or force whatever until confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Order made by the Minister of Transport and Civil Aviation under the said Act as set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as set out in the schedule to this Act shall be Confirmation and the same is hereby confirmed and all the provisions thereof of Order in in manner and form as they are set out in the said schedule shall schedule. from and after the passing of this Act have full validity and force.

2. This Act may be cited as the Pier and Harbour Order Short title. (Wisbech Port and Harbour) Confirmation Act 1956.

SCHEDULE

WISBECH PORT AND HARBOUR

Provisional Order to make further provision for the management of the Port and Harbour of Wisbech and for other purposes.

Short title.

1. This Order may be cited as the Wisbech Port and Harbour Order 1956.

Commence-
ment.

2. This Order shall come into operation upon the day when the Act confirming this Order is passed and that day is in this Order referred to as the commencement of this Order.

Interpretation.

3. In this Order unless the context otherwise requires words and expressions to which by the Act of 1810 and the Act of 1889 or by any enactments incorporated therewith or applied thereto meanings are assigned have the same respective meanings and—

“the Act of 1810” means the Act passed in the fiftieth year of the reign of His Majesty King George III intituled “An Act for establishing a Cattle Market within the Town of Wisbech in the Isle of Ely; for taking down and removing the Shambles therein; for paving cleansing lighting and watching the said Town and removing Nuisances therein; for preserving and improving the Port and Harbour of Wisbech and for regulating the Pilots belonging thereto”;

“the Act of 1889” means the Wisbech Corporation Act 1889;

“the Corporation” means the mayor aldermen and burgesses of the borough of Wisbech;

“the Harbours Clauses Act 1847” means the Harbours Docks and Piers Clauses Act 1847;

“the Minister” means the Minister of Transport and Civil Aviation;

“the Port” means the Port and Harbour of Wisbech the limits whereof are defined in section XLVII (Limits of Port and Harbour of Wisbech) of the Act of 1810 and the land buildings works plant property and conveniences connected therewith or any part thereof as the case may be.

Undertakers.

4. The Corporation shall be the undertakers for carrying this Order into execution.

Application of
Harbours
Clauses Act
1847.

5.—(1) In the application to this Order of the Harbours Clauses Act 1847 the expression “the special Act” shall mean this Order and the word “vessel” shall include a seaplane on the surface of the water. Provided that nothing in the Harbours Clauses Act 1847 or this Order shall in any circumstances require or authorise the harbour master or other officer to require the dismantling of a seaplane or any part thereof or the making of any alteration whatever of the structure or equipment of a seaplane.

(2) Sections 6 to 13 16 to 23 25 to 27 29 to 82 and 84 to 95 of the Harbours Clauses Act 1847 shall not be incorporated with this Order.

(3) The Act of 1889 shall have effect as if sections 84 to 87 of the Harbours Clauses Act 1847 were not incorporated therewith.

6. Section 45 (Power for Corporation to make byelaws as to quay &c.) of the Act of 1889 shall have effect as if for references to the quay or river wall there were references to any quay or river wall within the Port.

Amendment
of section 45
of Wisbech
Corporation
Act 1889.

7.—(1) No byelaw made by the Corporation after the commencement of this Order under section LVIII (Power to make Bye Laws) of the Act of 1810 shall have effect unless and until it is confirmed by the Minister.

Byelaws.

(2) The provisions of subsections (3) to (7) of section 250 and section 252 of the Local Government Act 1933 shall apply to all byelaws to be made by the Corporation under section LVIII (Power to make Bye Laws) of the Act of 1810 section 44 (Bonding Warehouses) and section 45 (Power for Corporation to make byelaws as to quay &c.) of the Act of 1889 and section 83 of the Harbours Clauses Act 1847 as incorporated with the Act of 1889 as amended by this Order and in the application of those provisions to such byelaws the Minister shall be the confirming authority.

(3) The byelaws which may from time to time be made by the Corporation in exercise of the powers in that behalf conferred on them by section 83 of the Harbours Clauses Act 1847 as incorporated with the Act of 1889 and with this Order may provide for the imposing of a penalty not exceeding five pounds for the breach or non-observance of any of the byelaws.

(4) As respects byelaws made under section 83 of the Harbours Clauses Act 1847 as incorporated with this Order the confirming authority for the purposes of section 250 of the Local Government Act 1933 shall be the Minister.

8. The Minister may cause to be held such inquiries as he may consider necessary in regard to the exercise of any powers or duties conferred or imposed upon him and the giving of any consent or approval or the making of any order or the confirmation of any byelaw under this Order and subsections (2) to (5) of section 290 of the Local Government Act 1933 shall apply to any such inquiry as if it were an inquiry held in pursuance of subsection (1) of that section.

Inquiries by
Minister.

9. The Corporation may appoint officers for securing the observance of the byelaws and regulations made by the Corporation in respect of the Port.

Appointment
of officers to
enforce
byelaws and
regulations.
Repeal.

10. Section LIX (Bye Laws and Duties to be printed) of the Act of 1810 is hereby repealed.

11. All costs charges and expenses of and incidental to the preparing and obtaining of this Order and otherwise incurred in reference thereto (as taxed by the appropriate officer) shall be paid by the Corporation.

Costs of Order.

Table of Statutes referred to in this Act

Short title	Session and chapter
Act of 1810	50 Geo. 3 c. ccvi.
Harbours Docks & Piers Clauses Act 1847	10 & 11 Vict. c. 27.
General Pier and Harbour Act 1861	24 & 25 Vict. c. 45.
Wisbech Corporation Act 1889	52 & 53 Vict. c. cxxxvii.
Local Government Act 1933	23 & 24 Geo. 5 c. 51.

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